Salgaonkar

MANDIRA MILIND SALGAONKAR Digitally signed by MANDIRA MILIND SALGAONKAR Date: 2026.10.22 13:19:26 +0530

IN THE HIGH COURT OF JUDICATURE AT BOMBAY

CIVIL APPELLATE JURISDICTION

CONTEMPT PETITION NO.424 OF 2026

Namrata Nilesh Koli & Anr. .. Petitioners

Versus

Thane Municipal Corporation & Ors. .. Respondents

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Mr.Pritesh Burad with Ms.Rama Somania and Mr.Akhilesh Kumar Maurya i/b Pritesh Burad Associates for the Petitioner.

Mr.Rajesh Kanojia with Ms.Gargi Mandvikar i/b Res Juris for the Respondent No.4.

Mr.M.M.Pabale, A.G.P. for the State/Respondent.

CORAM: BHARATI DANGRE &
ASHISH S. CHAVAN, JJ.
DATE : 19th OCTOBER, 2026

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P.C:-

1. The Contempt Petition is filed alleging disobedience of the order passed in Writ Petition No.9031 of 2023 on 28/02/2024. The Petition being filed by the mother and daughter of one Mohan Alaji Patil, an employee of Thane Municipal Corporation, since his death occurred during the Covid pandemic and he being insured under the Pradhan Mantri Garib Kalyan Package :Insurance Scheme for Health Workers Fighting Covid-19, they claimed the benefit of the scheme. It is worth to note that Mohan Alaji Patil demised while in service on 29/10/2020 and the amount of compensation was sanctioned under the said scheme.

The grievance of the petitioners before the Court was that the Disbursing Authority has not disbursed the amount in the wake of the *inter se* claim between the petitioners and the respondent No.6 i.e. the son of Mohan Alaji Patil and, therefore, the doors of the Court were knocked.

It is in this writ petition, the Division Bench passed the following order.

> "2. The Petitioners have filed this Petition claiming that being the daughter and mother of the deceased employee of the Respondent – Thane Municipal Corporation are entitled to the insurance compensation to be provided under the Pradhan Mantri Garib Kalyan Package : Insurance Scheme for Health Workers Fighting Covid-19. It is their case that the deceased who was working with the Respondent – Thane Municipal Corporation passed away while in service on 29 October 2020. Under the scheme the compensation amount is sanctioned. The question has arisen as regard the claim of the Respondent No.6.
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> 3. There is no decision taken by the Disbursing Authority as to the *inter se* claim of the Petitioners and the Respondent No.6 and the Petitioners had called upon this Court at the first instance to decide the issue. Therefore, we deem it appropriate that the Respondent No.4 would examine the claim of the Petitioners and the Respondent No.6 and decide regarding the entitlement by passing a reasoned order.
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> 4. Since it is pointed out that the claim which is sanctioned has not disbursed for almost four years, the Respondent No.4 upon giving opportunity to the Petitioners and the Respondent No.6 will take a decision within a period of four weeks, after all record is made available to it and communicate the same to the Petitioners and the Respondent No.6. All contentions of the parties are kept open."

2. Since this order was not complied with, when the Contempt Petition appeared before us on 06/10/2026, we passed a detailed order, *prima facie*, noting that the Petitioners are waiting for more than five years for the amount and in fact, when the amount for disbursal under the scheme was already determined, the actual amount was not disbursed.

During the course of hearing, learned counsel representing the New India Assurance Company, one of the

contemnors, invited our attention to the letter addressed by the Deputy Secretary to the Govt. of India, Ministry of Health & Family Welfare to the Regional Manager of New India Assurance Co. Ltd. dated 29/04/2024, intimating that the Ministry has taken a decision that it would transfer the amount of compensation directly to the aadhaar linked bank account of the beneficiaries, as it is not desirous of incurring any additional expenditure on the commissions to be paid to the Assurance Company for processing the pending claims. As a result, the pending original claim documents pertaining to Pradhan Mantri Garib Kalyan Package (PMGKP) were directed to be forwarded to the Ministry.

3. The Assurance Company, therefore, adopted a stand that now it is not within its power to take any decision and it is in this background, we observed thus :-

> "3. We are at pains to find that the heirs of a person who lost his life during the COVID-19 pandemic are made to wait for the last six years, and that is really unfortunate, according to us The Petitioners in the Writ Petition sought their respective share and, therefore, the Court directed the Assurance Company, i.e. Respondent No. 4, only to take a decision about the *inter-se* claim of the Petitioners and communicate the same to the Petitioners as well as Respondent No. 6, one of the claimants, but on the aforesaid pretext, nothing has been done by the Assurance Company, and now the excuse given is that all the documents have been forwarded. Though we could have initiated an action for flouting the orders passed by us, since the learned counsel for the Assurance Company earnestly submits that, if the learned counsel for the Petitioners furnishes the necessary documents and on the basis of which the order passed by this Court can be still complied with, it will make a sincere endevour to do so. Upon its determination, how the amount shall be disbursed and by whom will be taken care of by us on the next date of hearing."

4. In light of our aforesaid directions, the Assurance Company has placed before us its report, and a copy of which is addressed to all the three claimants and it is in form of a order,

which refers to the proceedings taken by the parties to avail the service benefits of the deceased and the report state that a succession certificate was granted on 21/10/2022, which was restricted to gratuity, provident fund and other amounts arising out of the employment benefits. However, there was no mention of the insurance amount.

The report mentions that the son of the deceased, namely, Rakesh Mohan Patil, has also separately applied for grant of succession certificate claiming that he is the only successor of the said amount and at present, it is now pending before Raigad Alibag Court and this Miscellaneous Application No.153 of 2021 for grant of succession certificate on being transferred to the Court of Civil Judge, Senior Division, Alibag and renumbered as M.A.No.195 of 2023 is pending and subjudice.

The report also makes a reference to a certificate that was produced by Shri Rakesh Mohan Patil and the certificate issued by the District Magistrate in terms of the Insurance Scheme for the Health Workers fighting Covid-2019, PMGKP, is in the name of Rakesh Mohan Patil i.e. son of Mohan Alaji Patil (the certificate wrongly mentions the nomenclature of the deceased and the claimant) and on perusal of the certificate, it appears that Rakesh Mohan Patil was only exclusively held entitled for the amount of insurance, in the wake of demise of Mohan Alaji Patil. In any case, the Assurance Company has not acted on it.

5. The report of the New India Assurance Company is taken on record and marked ‘X’ for identification. It is worth noting that the copies of the same are already forwarded to the

Petitioners as well as to Rakesh Mohan Patil, Respondent No.6, who has failed to mark his appearance.

6. Although this is a Contempt Petition, but in order to do complete justice to the parties and in order to ensure compliance of our order dated 06/10/2026, whereby the Assurance Company was directed to take a decision upon the eligibility and entitlement of the claimants against the amount for which the deceased was insured and since, it was clearly indicated that upon this being determined, how much shall be the amount which shall be disbursed and how much shall be paid would be determined by us, with the Assurance Company fairly coming before us with all the relevant tax, we deem it appropriate to make an exception of issuing directions though in contempt proceedings we are not otherwise within our jurisdiction to issue any positive directions and only to ensure whether the directions issued by the Court are complied or not. The Division Bench by its order dated 28/02/2024 itself had indicated that the claim amount is already sanctioned, but not disbursed for four years and by directing the Assurance Company to take a decision, after giving an opportunity to the petitioners, namely, deceased's mother and his own daughter and son, the petition was disposed of.

In our view, now the disbursement is not in the hands of the Assurance Company, but will have to be done by the Government of India, Ministry of Health & Family Welfare in terms of the communication addressed to the New India Assurance Co. Ltd. on 29/04/2024 and since it was already indicated by the learned counsel for the Assurance Company that all the papers are already forwarded to the Ministry of

Health & Family Welfare, we direct him that the report that is placed before us by the Assurance Company shall be immediately forwarded to the Deputy Secretary to the Government of India, Ministry of Health & Family Welfare, National ADIS Control Organisation in terms of the communication dated 29/04/2024. We also direct that the Assurance Company shall ensure that it is forwarded to the Deputy Secretary to the Government of India and though the Government of India is not a party, as it was not involved at this stage, but in the wake of subsequent event that the Government of India deemed it appropriate to take up the work of disbursement of compensation by itself, as much period has lapsed after the Covid pandemic and the Government did not deem it appropriate to issue commissions to the Assurance Company, which was earlier engaged for settling the claim, we direct that the Government of India, Ministry of Health & Family Welfare shall immediately take a decision upon the communication forwarded by the New India Assurance Co.Ltd.

We also declare that 2/3rd of the amount shall be disbursed in favour of the two Petitioners before us. However, we permit 1/3rd of the amount to be disbursed in favour of Rakesh Mohan Patil in his account and we expect the Petitioners to furnish the account numbers of all the three claimants to the learned counsel for the Assurance Company, so that in the forwarding letter, they shall be forwarded to the Government of India.

Upon the communication being received, the only job which is required to be undertaken by the Government of India

shall be disbursement of the amount in each of the account holders, namely, Namrata Nilesh Koli alias Namrata Mohan Patil, Smt.Gangubai Alaji Patil and Rakesh Mohan Patil in equal proportion.

7. With this, we dispose of the contempt proceedings by making out an exception and we also direct that the learned counsel for the Petitioners shall forward a copy of our order to the Government Advocate, who shall address a communication to the Government of India, Ministry of Health & Family Welfare, which shall act upon the said communication which shall be accompanied with the copy of our order within a period of eight (8) weeks from the date of its receipt.

(ASHISH S. CHAVAN, J.) **(BHARATI DANGRE, J.)**